

evidence to show that it has a probability of prevailing on its claims. Therefore, the court intends to deny the motion to strike.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 08/17/16.
(Judge's initials) (Date)

(46)

Tentative Ruling

Re: **Grace Cesa v. American Honda Motor Co., Inc.**
Superior Court Case No. 24CECG05059

Hearing Date: August 18, 2026 (Dept. 501)

Motion: by Plaintiff for Attorney's Fees

Tentative Ruling:

To grant an award of attorney's fees in the reduced amount of \$12,725.72. Payment shall be made by defendant American Honda Motor Co., Inc. to the Law Office of Patrea R. Bullock within 30 days of the clerk's service of the minute order.

Explanation:

Under Civil Code section 1794 subdivision (d), if a buyer prevails in an action under the Song Beverly Act, the buyer "shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of the action." (Civ. Code, § 1794, subd. (d).)

Prevailing Party

The parties agreed that Plaintiff is the prevailing party for purposes of a fees motion. (Bullock Decl., ¶ 17, Exh. B at ¶ 5.)

Calculating the Fees

The amount of attorney's fees awarded is a matter within the court's discretion. (*Clayton Development Co. v. Falvey* (1988) 206 Cal.App.3d 438, 447.) In determining the reasonable amount to award, "the court should consider ... 'the nature of the litigation, its difficulty, the amount involved, the skill required and the skill employed in handling the litigation, the attention given, the success of the attorney's efforts, his learning, his age, and his experience in the particular type of work demanded [citation]; the intricacies and importance of the litigation, the labor and necessity for skilled legal training and ability in trying the cause, and the time consumed.'" (*Ibid.*) An award of costs must be "reasonably necessary to the conduct of the litigation" and shall be "reasonable in amount." (Code Civ. Proc., § 1033.5 subd. (c)(2), (c)(3).) Plaintiff as the moving party bears the burden to prove the reasonableness of the number of hours devoted to this action. (*Concepcion v. Amscan Holdings, Inc.* (2014) 223 Cal.App.4th 1309, 1325.)

Reasonable Time Expended

A trial court may not rubberstamp a request for attorney fees, and must determine the number of hours reasonably expended. (*Donahue v. Donahue* (2010) 182 Cal.App.4th 259, 271.) A court assessing attorney's fees begins with a touchstone or lodestar figure, based on the "careful compilation of the time spent and reasonable hourly compensation of each attorney . . . involved in the presentation of the case." (*Serrano v. Priest (Serrano III)* (1977) 20 Cal.3d 25, 48.) Lodestar refers to the "number of hours reasonably expended multiplied by the reasonable hourly rate" of an attorney. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1096.)

Plaintiff claims a total of 28.5 billable hours (comprised of 24.3 hours reflected in billing entries and an additional 4.2 hours for the subsequent Reply to the Opposition). Plaintiff provides a printout of the billing entries. (See Bullock Decl., ¶ 26, Exh. E.) The court considers Defendant's challenges to the billing entries.

Defendant argues that certain entries are not recoverable or should be reduced, as they are clerical or administrative tasks, vague and routine communications, or excessive time spent.

Purely clerical or secretarial tasks should not be billed at a lawyer or paralegal's usual rate, regardless of who performs them. (*Missouri v. Jenkins* (1989) 491 U.S. 274, 288, fn. 10.) Calendaring, preparing proofs of service, internal filing, preparing binders for a hearing, and scanning are examples of tasks that have been found to be purely clerical and thus noncompensable or compensable at a reduced billing rate. (*Save Our Uniquely Rural Community Environment v. County of San Bernardino* (2015) 235 Cal.App.4th 1179, 1187; *Ridgeway v. Wal-Mart Stores Inc.* (N.D. Cal. 2017) 269 F.Supp.3d 975, 991.) Nor does recording a note to the file or an email to an attorney about the task make clerical time billable time. Here, the court will reduce 0.8 hours of billing as hours representing tasks purely clerical in nature.

A fee applicant bears the burden of providing sufficient detail to permit the Court to evaluate whether the claimed time was reasonably incurred. (*Nightingale v. Hyundai Motor America* (1994) 31 Cal.App.4th 99, 104.) Here, the court will reduce 0.5 hours of billing as hours vaguely entered.

Plaintiff in its supplemental declaration remedied the discrepancy in excessive time billed for the present fees motion, reducing the originally requested time from 8.3 hours to 4.1 hours. Plaintiff claims an additional 4.2 hours for the Reply. The court will reduce the hours for this motion to 2 hours plus an additional hour for the Reply.

Thus, the overall billable hours (including for the present motion and reply papers) is reduced to 21.9 hours.

Reasonable Hourly Compensation

Reasonable hourly compensation is the “hourly prevailing rate for private attorneys **in the community** conducting noncontingent litigation of the same type.” (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1133, emphasis added.) Ordinarily, “the value of an attorney’s time . . . is reflected in his normal billing rate.” (*Mandel v. Lackner* (1979) 92 Cal.App.3d 747, 761.)

The rates for out-of-town counsel are generally higher than Central California’s going rates for comparable consumer litigators. Plaintiff’s counsel is out town. The hourly rate charged by the attorney is \$650.00. Where a party is seeking out-of-town rates, he or she is required to make a “sufficient showing...that hiring local counsel was impractical.” (*Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1244.)

Having reviewed the qualifications of Ms. Bullock, the sole timekeeper, the requested billing rate is not reasonable based on local rates. Plaintiff made no showing that local counsel practicing “Lemon Law” and Song-Beverly consumer litigation are not available. That counsel’s rates have been found reasonable in courts in other counties (e.g. Alameda and San Mateo Counties) is not persuasive. The court intends to award fees based on local rates. In light of her extensive time as an attorney and her experience in this practice area, the court finds the reasonable value of her services to be \$550.00.

Lodestar and Total Award of Fees

Having reviewed the hourly rates and the hours billed, the lodestar is set at \$12,045.00. The motion for an award of attorney’s fees is granted in the amount of \$12,045.00.

Costs

In Song-Beverly Act cases, Civil Code section 1794, subdivision (d), provides for an award of not only “costs”, but also “expenses” to the prevailing buyer if the costs and expenses were reasonably incurred in the commencement and prosecution of the action. Courts have interpreted the term “expenses” to mean that the trial court has discretion to award more than just the costs provided under section 1033.5, and that the court may grant other costs that were reasonably incurred by the buyer in connection with the commencement and prosecution of the action. (*Jensen v. BMW of North America, Inc.* (1995) 35 Cal.App.4th 112, 137-138, [finding trial court should not have denied plaintiff’s request for expert witness fees simply because they were not permitted under section 1033.5]; disapproved on other grounds by *Rodriguez v. FCA US, LLC* (2024) 17 Cal.5th 189.)

Costs are sought via declaration. Plaintiff verifies the costs sought under penalty of perjury, and provides receipts in support of requested costs. (Bullock Decl., ¶ 29, Exh. E-1.) Defendant does not challenge the requested costs or the supporting documents. Costs and expenses will be granted as requested in the amount of \$680.72.

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